

Archana vs Nagaraj Yadav on 7 October, 2024

KABC030196312015

Presented on : 10-03-2015
Registered on : 10-03-2015
Decided on : 07-10-2024
Duration : 9 years, 6 months, 28 days

IN THE COURT OF THE VIII ADDITIONAL CHIEF
JUDICIAL MAGISTRATE, BENGALURU CITY

Present: Smt. Deepa.V., B.A.L. LL B.
VIII ACJM, Bengaluru City.

Date: this the 7th Day of October, 2024

C.C. No.7187/2015

State by Gangammanagudi Police Station,
Bengaluru. ... Complainant
(Represented by Sri. Vishwanath Senior APP)

Versus

1. Sri Nagaraj Yadav,
Aged about 35 years.
S/o Late Sri Gangadhar,
R/at No.172, 1st floor,
Ashwathappa Building,
In front of Government School,
Kammagondanahalli, Bengaluru.

2. Smt Saraswathi,
Aged about 54 years
W/o. Late Sri A.Gangadhar,
R/at No.8, Ashwathappa
Building, Abbigere Main Road,
KABC030196312015

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Kammagondanahalli,
Bengaluru.

3. Smt. Manjula.G.,
Aged about 36 years,
W/o. Late Sri Mohankumar,
R/at No. 108, Jnanabharathi
Layout, Bengaluru.

... Accused

(A1 represented by Sri Ramaswamy, Advocate)

(A2 & 3 represented by Sri Jayarama, Advocate)

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| 1. Date of commission of offence | 17/03/2011 till 15/03/2014 |
| 2. Name of Complainant | Smt. Archana |
| 3. Offences complained of | Under Section 498(A) R/w Sec.34 of IPC and Section 3, 4 of Dowry Prohibition Act |
| 4. Charge | Pleaded not guilty |
| 5. Final Order | Accused are acquitted |
| 6. Date of order | 07-10-2024 |

JUDGMENT

The Police Inspector of Gangammanagudi Police Station submitted charge sheet against accused No.1 KABC030196312015 CC No.7187/2015 to 3 for the offences punishable under Section 498(A) of Indian Penal Code and Section 3, 4 of Dowry Prohibition Act.

2. Prosecution Case: The marriage of CW1 Smt. Archana and accused No.1 was solemnized on 14-02-2007 as per the Hindu customs and rites. At the time of marriage, the accused received a gold jewelry and Rs.50,000/- for purchase of clothes from the parents of CW1 as dowry. After the marriage, they were living in the house of Ashwathappa Building No.72, Abbigere Main Road, Jalahalli West, in front of Kammagondanahalli Government School within the limits of Gangammanagudi Police Station, at that time the accused No.2 used to receive Rs.5,000/- on every month from CW1 to pay Chit() amount and accused No.1 to 3 with common intention harassed CW1 for fetching additional dowry from her parental house to pay their debts. On 15-03-2014 at 8.00 pm, the accused No.1 and 2 with the common intention demanded Rs.2 lakh as dowry, abused her and beaten and thrown CW1 and her daughter out of the house thereby subjected her to mental and physical cruelty.

3. First Information Report: On the basis of first information given by informant cum CW1 namely Smt. Archana, CW15-Sri Janardhana Rao, PSI of Gangammanagudi Police Station registered a Crime No.122/2014 against the accused No.1 to 3 for the KABC030196312015 CC No.7187/2015 offences punishable under Section 498(A) R/w Section 34 of IPC and Section 3, 4 of D.P.Act, prepared FIR and sent the same to the Court and to his superior officers.

4. Investigation: After registration of FIR, CW15 conducted spot mahazar on 08-07-2014 as per Ex.P2 and handed over the case papers to the CW16. CW16 Sri M.S.Sathyanarayana on the receipt of case papers continued the investigation, collected the documents, recorded the statement of witnesses and submitted charge sheet against accused No.1 to 3 for the offences punishable under Section 498(A) R/w Section 34 of IPC and Section 3, 4 of D.P.Act, .

5. At the pre-summoning stage accused No.1 to 3 were enlarged on bail by the order dated 04-07-2014 and 23-07-2014 respectively.
6. On receipt of charge sheet, this Court took cognizance of offence alleged against the accused No.1 to 3.
7. Copies of prosecution papers as required U/Sec.207 of Cr.P.C have been furnished to the accused.
8. Charge: After hearing learned Sr.APP and counsel for accused, charge for the offences punishable U/Sec.498(A) read with sec.34 of Indian Penal Code and Section 3, 4 of Dowry Prohibition Act KABCo30196312015 CC No.7187/2015 has been framed, read over and explained to the accused No.1 to 3 in the language known to them, who, in turn, pleaded not guilty and claimed to be tried.
9. Prosecution Evidence: The prosecution in order to establish its case cited 16 witnesses, examined one witness and exhibited two documents. The learned Sr.APP prayed for issuance of summons to other witnesses however his prayer was rejected on the ground that no purpose would be served as CW1 and the accused No.1 has compromised the matrimonial differences in M C no. 8006/2023 and hence the examination of CW2 to CW16 was dispensed with by the order dated 05/10/2024.
10. Accused statement as per section 313 of CrPC: No incriminating material found against the accused No. 1 to 3 from examination under section 313 of CRPC.
11. Heard the arguments. Perused materials on the record.
12. The following point are arises for consideration is as follows;

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1. Whether the prosecution proved beyond all reasonable doubt that the marriage of CW1 Smt. Archana and accused No.1 was solemnized on 14-02- 2007 as per the Hindu customs and rites, at the time of marriage, the accused received a gold jewelry and Rs.50,000/-

for purchase of clothes from the parents of CW1 as dowry thereby resulted in commission of an offence punishable u/Sec. 3 of Dowry Prohibition Act?

2. Whether the prosecution proved beyond all reasonable doubt on above said place, after marriage they were living in the house of Ashwathappa Building No.72, Abbigere Main Road, Jalahalli West, In front of Kammagondanahalli Government School within the limits of Gangammanagudi Police Station, at that time accused No.2 receiving Rs.5,000/- on every month from CW1 to pay Chit() KABCo30196312015 CC No.7187/2015 with common intention harassed CW1 to fetch additional dowry from her parental house to pay their debts thereby resulted in commission of an offence punishable u/Sec. 4 of Dowry Prohibition Act?

3. Whether the prosecution proved beyond all reasonable doubt on above said place on 15-03-2014 at 8.00 pm, accused No.1 and 2 with the common intention demanded Rs.2 lakh as dowry from CW1, abused her and beaten and thrown CW1 and her daughter out of the house thereby subjected her to mental and physical cruelty thereby resulted in commission of an offence punishable u/Sec.498(A) R/w sec.34 of IPC?

4. What order?

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13. The court's findings on the above points are as under:

Point No.1-3 : In the Negative Point No.4 : As per final order REASONS

14. Point No.1 to 3: These points are taken up together for the purpose of common discussion in order to avoid repetition of facts as they form the same part of transaction. In support of prosecution case as narrated in paragraph 2 and the point for consideration in paragraph 12 of this judgment, the prosecution has examined one witness, which is as follows i. CW1 by name Smt. Archana, being Informant examined as PW1 deposed she has identified her signatures on Ex.P1 (complaint) and Ex.P2 (spot mahazar). She further stated that when she went to police station for settlement of minor differences of opinion amongst her and accused No.1, the police obtained her signatures on the said documents and she pleaded ignorance about the contents of Ex.P1 and 2. In this regard, the learned Sr.APP has cross examined this witness by treating her as hostile witness but no favorable answer has been elicited from her to support the prosecution case.

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15. PW1 is the informant cum victim has not supported the prosecution case. Though the prosecution has cross examined her by treating as hostile witness, no favorable answers has been elicited from her to support the prosecution case that she has deposed falsely to help the accused. However it appears from the cross examination of PW1 that . . .

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Thus, it emerges from the cross examination of PW1 that the disputes between the accused No. 1 and the PW1 have been settled. The learned APP argued that the Section 498A R/w Section 34 of Indian Penal code is not compoundable offence as per section 320 of CRPC and hence the examination of

witnesses is necessary however this court dispensed the same on account of amicable settlement arrived between the rival parties to the case and PW1 did not support the prosecution case. Yes this court agrees with the view of the Learned Sr.APP that the section 498A of IPC KABC030196312015 CC No.7187/2015 cannot be compounded as per Section 320 of CRPC. This court places reliance in the case of B.S. JOSHI AND ORS. V. STATE OF HARYANA AND ANR IN THE MATTER OF AIR 2003 SCW 1824, wherein it was held that, "in a case where matrimonial disputes have been resolved between the parties then in that case offence under Section 498A of I.P.C. may be compounded between the parties for according to them an opportunity to settle in life afresh.

16. This court further places reliance upon the decision in the case of Ranjana Banerjee v. Bijay Bhushan Banerjee and Ors., 1996(2) East. Cri. C. 808 (Pat), wherein this lordship observed which runs thus:

"It appears that good sense have been prevailed amongst the spouses and when it became impossible for them to lead conjugal life any further and when the matrimonial home has been broken for all practical purposes, they have decided to withdraw all allegations and counter allegations against each other and get themselves separated on divorce by mutual consent. Although, Section 498A of the KABC030196312015 CC No.7187/2015 Indian Penal Code is not compoundable, but in the nature and circumstances of the case and the situation prevailing, accord is hereby granted to compromise the dispute between the parties and hence joint petition filed in both the cases are hereby allowed."

It further held that after examining the nature of the case and the circumstances, under which the offence has been committed, it would be proper to compound the offence and in my opinion, it would be also meet the ends of justice."

17. ADMITTEDLY, the disputes between the PW1 and accused No. 1 have been resolved. The criminal case under Section 498A of I.P.C. is the off-shoot of the said matrimonial dispute. The parties have come to their terms and in pursuance thereto the CW1/PW1 does not intend to proceed with this case and hence she has not supported the prosecution case.

18. In the case of the KRISHNA vs STATE OF KARNATAKA reported in Laws(Kar) 2014 4 464, wherein it was held that "it would be unfair or contrary to the interest of justice to continue with the criminal proceeding or continuation of criminal proceeding would tantamount to abuse of process of law despite settlement and compromise between the KABC030196312015 CC No.7187/2015 victim and the wrongdoer and to secure the ends of justice, it is appropriate that criminal case is put to an end".

19. Under these circumstances and on account of the preposition laid down by the Hon'ble Apex and Hon'ble High Court, even if other witnesses examined by the prosecution, they did supported the prosecution, would not helpful to the prosecution. In this background, this court feels it is a waste of precious time of the Court in examining other witnesses. Moreover the evidence of other witnesses is only formal in nature. Therefore, the prayer of learned APP is rejected and prosecution evidence is

taken as closed and hence the offence under section 498A of IPC with other offences under section 323, 504, 506 of IPC cannot be proved beyond reasonable doubt. Accordingly, this court answers the point No.1 to 6 in the Negative.

20. Point No.7:- In view of the above findings and reasons given on point No.1 to 6, this Court proceeds to pass the following:

ORDER Acting U/Sec.248(1) of the Cr.P.C.

(i) The accused No.1 to 3 found not guilty and acquitted from the offences punishable under Sec.498(A) read KABC030196312015 CC No.7187/2015 with section 34 of Indian Penal Code and Section 3, 4 of Dowry Prohibition Act.

(ii) Accused are set at liberty.

(iii) In view of Section 437-A of Cr.P.C their bail bonds shall be in force for 6 (six) months.

(iv) Ordered accordingly.

(Dictated to the stenographer, typed by steno, verified and corrected by me, then the judgment pronounced by me in the open court, on this the 07rd day of October, 2024) (Deepa.V.), VIII Addl. Chief Judicial Magistrate, Bengaluru City.

ANNEXURE Witnesses examined for the prosecution :

PW1 : Smt. Archana Documents marked on behalf of the prosecution:

Ex.P1	:	Complaint
Ex.P2	:	Spot Mahazar

Material Objects marked on behalf of the KABC030196312015 CC No.7187/2015 prosecution: NIL
Witnesses examined for the defence:Nil Documents marked on behalf of the defence:Nil VIII Addl. Chief Judicial Magistrate, Bengaluru City KABC030196312015 CC No.7187/2015 07-10-2024
Judgment pronounced in the open court vide separately ORDER Acting U/Sec.248(1) of the Cr.P.C.

(i) The accused No.1 to 3 found not guilty and acquitted from the offences punishable under Sec.498(A) read with section 34 of Indian Penal Code and Section 3, 4 of Dowry Prohibition Act.

(ii) Accused No.1 to 3 are set at liberty.

(iii) In view of Section 437-A of Cr.P.C their bail bonds shall be in force for 6 (six) months.

(iv) Ordered accordingly.

VIII ACJM, Bengaluru.